

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff,

v.

CONRAD ALAN ROCKENHAUS,
Defendant.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT'S MOTION FOR RETURN OF PERSONAL PROPERTY, RESTORATION
OF ELECTRONIC ACCOUNT ACCESS, INVENTORY AND ACCOUNTING, AND
COURT-SUPERVISED RETRIEVAL MECHANISM**

NOW COMES Defendant, **Conrad Alan Rockenhaus**, appearing pro se, and pursuant to MCL 552.401, MCR 3.206(C), MCR 3.310, and the Court's inherent authority to supervise marital and personal property pending divorce judgment, respectfully moves this Honorable Court for an Order: (i) directing Plaintiff to return Defendant's personal property, identification documents, records, and tools currently held at 26695 Ross Drive, Redford, Michigan; (ii) restoring Defendant's access to electronic accounts and the federal identity-verification chain currently under Plaintiff's operational control; (iii) compelling Plaintiff to produce a sworn inventory of items at the marital residence and an accounting of items removed since September 4, 2025; (iv) establishing a court-supervised retrieval mechanism that does not require direct contact between the parties; and (v) reserving Defendant's right to damages for items not returnable. In support thereof, Defendant states as follows:

I. RELATIONSHIP TO PENDING MOTIONS

1. Defendant's Omnibus Three-Layer Motion, filed in this matter on April 15, 2026, addresses preservation of evidence, financial disclosure, and a domain-related restraint.
2. Defendant's Motion for Temporary Restraining Order Prohibiting Dissipation of USAA Account Receiving Diverted Federal Veterans and Social Security Benefits, filed in this matter on May 7, 2026, addresses financial property in the form of federally-protected benefits diverted to an account at USAA Federal Savings Bank.
3. This Motion addresses a third and distinct category: Defendant's physical personal property at the marital residence and his electronic-account access. The relief sought herein is complementary to, and not duplicative of, the relief sought in the Omnibus and TRO Motions. Together, the three motions address the full perimeter of property issues subject to this Court's authority pending divorce judgment.
4. A parallel motion seeking related relief is presently pending in Wayne County Personal Protection Order matter 26-102221-PP. Defendant intends to withdraw the PPO-track motion upon the assignment of a hearing date in this matter, in order to consolidate property relief in the divorce-court forum where this Court holds plenary authority under MCL 552.401.

II. FACTUAL BASIS

5. The parties executed a residential lease for 26695 Ross Drive, Redford, Michigan 48239, commencing September 1, 2025, through August 31, 2026. Both parties are named lessees on the lease. The lease is filed of record as Exhibit A to Defendant's Motion for Change of Venue and is incorporated by reference.
6. On September 4, 2025, Defendant was taken into federal custody pursuant to a federal arrest warrant. Defendant remained incarcerated at FCI Milan until his release on March 2, 2026. From September 4, 2025 through March 2, 2026, Defendant had no physical access to the marital residence and no opportunity to take possession of any personal property located there.
7. On or about March 2, 2026, the day of Defendant's release, the Personal Protection Order in Case No. 26-102221-PP was served. Officers of the Redford Township Police Department were present at the marital residence during the service. Plaintiff falsely represented to the officers, in their presence and on the record of Redford Township Police Case Report 260003379, that Defendant had never resided at 26695 Ross Drive. The misrepresentation was contradicted by the recorded lease identifying Defendant as a co-lessee.
8. As a direct result of Plaintiff's misrepresentation to law enforcement, Defendant was prevented from retrieving any personal property from the marital residence on the date of his release or at any time thereafter. Defendant was rendered homeless following service of the PPO and remained without stable housing until March 29, 2026, when he obtained housing at 1690 Brookfield Drive, Ann Arbor, Michigan, with the assistance of the Department of Veterans Affairs.
9. From September 4, 2025 to the present date, Plaintiff has had exclusive operational control over the marital residence and the personal property located within it. Defendant has not had the opportunity to inventory, access, or remove any of his personal property during that period.
10. Beginning on April 21, 2026, and continuing through April 24, 2026, Defendant made written attempts through Plaintiff's then-counsel of record at Aldrich Legal Services, PLLC, to coordinate an informal mechanism for retrieval of his personal property. The April 21, 2026 communication included a four-part proposal for property retrieval. The April 24, 2026 communication established a deadline of May 1, 2026 for substantive response regarding a reasonable mechanism for retrieval. No substantive response addressing a mechanism for property retrieval was received from Plaintiff or her counsel by the May 1, 2026 deadline or at any time thereafter. The pre-litigation efforts described in this paragraph demonstrate Defendant's good-faith attempt to resolve this matter without recourse to court-supervised relief and confirm that informal cooperation is not available.

III. PROPERTY HELD AT THE MARITAL RESIDENCE

12. The categories of Defendant's personal property held at 26695 Ross Drive, Redford, Michigan, and currently inaccessible to Defendant, include the following:

A. Personal Electronic Devices

- a. One (1) Apple iPhone 16e;
- b. One (1) Apple iPhone 15 Pro Max;
- c. One (1) Apple Watch;
- d. One (1) Apple iPad;
- e. One (1) Apple Mac Mini computer;
- f. One (1) Network Attached Storage (NAS) device.

B. Identification Documents and Vital Records

- g. Defendant's DD-214 (Certificate of Release or Discharge from Active Duty, United States Navy);
- h. Defendant's certified Birth Certificate;
- i. Defendant's Social Security card.

C. Financial Instruments and Records

- j. All bank cards, debit cards, and credit cards issued in Defendant's name;
- k. All financial documents in Defendant's name, including without limitation account statements, tax records, loan documents, retirement account documents, insurance records, and payment instruments.

D. Records

- l. All military records in Defendant's name, including without limitation service records, decorations and awards documentation, training records, deployment records, and Veterans Administration correspondence;
- m. All education records in Defendant's name, including without limitation diplomas, transcripts, certificates, and continuing-education documentation;
- n. All health records in Defendant's name, including without limitation medical, dental, mental health, pharmacy, and Veterans Administration health records.

E. Clothing and Personal Care Items

- o. Personal clothing belonging to Defendant;
- p. Prescription medications and over-the-counter medications belonging to Defendant;
- q. Personal care and hygiene items belonging to Defendant.

F. Tools and Work Equipment

- r. One (1) red tool box belonging to Defendant;
- s. One (1) DeWalt tool bag belonging to Defendant;
- t. One (1) DeWalt drill set belonging to Defendant.

G. Other Personal Property

- u. All other personal property belonging to Defendant currently located at the marital residence not specifically enumerated above.

12. The categories above reflect Defendant's current best knowledge of personal property held at the marital residence. Defendant lacks current personal knowledge of the precise inventory of items at the residence, having had no access since September 4, 2025. Defendant accordingly seeks an order compelling Plaintiff to produce a sworn inventory as set forth at Section V below.

IV. ELECTRONIC ACCOUNTS AND FEDERAL IDENTITY-VERIFICATION CHAIN

13. Separate from the physical property described above, Plaintiff retains operational control over electronic accounts under Defendant's name and over the federal identity-verification chain that depends on those accounts. The accounts and access pathways at issue are the following:
- a. Defendant's primary personal email account, conrad@rockenhaus.com;
 - b. Defendant's secondary personal email account, conradrock@gmail.com;
 - c. Defendant's professional email account, conrad@cannabytes.net;
 - d. The two-factor authentication recovery chain dependent on the foregoing email accounts, including without limitation Defendant's Login.gov account, his ID.me account, his VA.gov account, and his CAC.mil military Common Access Card account.
14. While Plaintiff retains operational control of the email accounts described above, Defendant cannot reliably receive two-factor authentication codes necessary to access his Login.gov, ID.me, VA.gov, or CAC.mil accounts. The practical consequence is that Plaintiff exercises operational control, by proxy, over Defendant's federal identity-verification posture, his veterans benefits portal, his military records portal, and any account that uses email-based two-factor authentication for recovery.

15. Restoration of Defendant's exclusive control over the email accounts described above is necessary to restore Defendant's exclusive control over his federal identity-verification chain.
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V. INVENTORY AND ACCOUNTING

16. Plaintiff is the only party with current knowledge of the items presently located at the marital residence and the items removed from the residence since September 4, 2025. Defendant is entitled to that information under MCR 3.206(C) (financial and property disclosure in domestic relations matters) and under the Court's inherent authority over marital property pending judgment.
17. Defendant accordingly requests that the Court order Plaintiff to produce, within fourteen (14) days of entry of the Order:
- a. A sworn inventory of all property of Defendant presently located at 26695 Ross Drive, Redford, Michigan;
 - b. A sworn accounting of all property of Defendant removed from the residence at any time between September 4, 2025 and the date of the Order, including without limitation the date of removal, the manner of removal, the current location of each item, and the identity of any third party in possession; and
 - c. A sworn statement identifying any item of Defendant's property known by Plaintiff to have been disposed of, sold, given away, destroyed, or otherwise rendered unrecoverable, including without limitation the date of disposal, the recipient if any, and the consideration received if any.
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VI. COURT-SUPERVISED RETRIEVAL MECHANISM

18. Defendant has consistently maintained, and continues to maintain, a behavioral protocol of no direct contact with Plaintiff. Defendant seeks the relief in this Motion through court-supervised mechanisms that are consistent with that protocol and do not require direct contact between the parties.
19. Defendant accordingly requests that the Court establish a court-supervised retrieval mechanism with the following features:
- a. A specific date and time for retrieval to be set by the Court;
 - b. Retrieval to be conducted by a third-party process server, court officer, or other neutral agent designated by the Court;
 - c. Plaintiff not required to be present at the retrieval, and at the Court's discretion, ordered absent during the retrieval window for the safety and dignity of both parties;
 - d. The neutral agent to videotape the retrieval, to itemize the property removed, and to file a sworn return of retrieval with the Court within seven (7) days of completion; and
 - e. Any items that cannot be located or that are missing as compared to the inventory ordered at Section V above to be documented in the return of retrieval and reserved to Defendant for treatment under Section VII below.
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VII. RESERVATION OF DAMAGES FOR NON-RETURNABLE ITEMS

20. To the extent any item of Defendant's property described in Section III or referenced in the inventory ordered at Section V is not returned to Defendant through the retrieval mechanism set forth at Section VI, whether because the item has been disposed of, removed beyond recovery, or otherwise rendered unrecoverable, Defendant reserves the right to recover damages for the value of the item plus consequential damages and to seek any further relief this Court deems appropriate, including without limitation an adverse inference at trial under the spoliation framework set forth in *Teel v. Meredith*, 284 Mich App 412 (2009).
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VIII. AUTHORITY

21. **MCL 552.401** confers on this Court plenary authority over marital property and over the disposition of property of the parties pending entry of judgment of divorce. The authority extends to ordering return of specific items, accounting, and damages for conversion or dissipation.
22. **MCR 3.206(C)** requires the parties in a domestic relations matter to make full disclosure of property and assets. The disclosure obligation is enforceable by the Court through orders compelling production, accounting, and inventory.
23. **MCR 3.310** authorizes preliminary injunctive relief, including specific-performance-type relief in the form of orders compelling return of specific property, where the elements for injunctive relief are satisfied.
24. The Court's **inherent authority** over the parties and their property pending judgment supplies further foundation for the relief requested, including the supervisory authority to direct the manner and conditions under which property retrieval is to be effected.

IX. RELIEF REQUESTED

WHEREFORE, Defendant **Conrad Alan Rockenhaus** respectfully requests that this Honorable Court enter an Order:

25. **Directing Plaintiff** to return to Defendant the personal property identified at Section III above, through the court-supervised retrieval mechanism set forth at Section VI;
26. **Directing Plaintiff** to immediately cease all use of, access to, and operational control over the email accounts conrad@rockenhaus.com, conradrock@gmail.com, and conrad@cannabytes.net; to release exclusive control of those accounts to Defendant; to provide Defendant with all current passwords, recovery information, and two-factor authentication credentials for those accounts; and to refrain from any further interference with Defendant's federal identity-verification chain dependent on those accounts;
27. **Compelling Plaintiff** to produce within fourteen (14) days the sworn inventory and accounting set forth at Section V above;
28. **Establishing** the court-supervised retrieval mechanism set forth at Section VI above, with specific date, time, neutral agent, and conditions to be determined by the Court;
29. **Reserving** to Defendant the right to recover damages, consequential damages, and any further relief, including adverse-inference instructions, for items not returnable as set forth at Section VII above;
30. **Confirming** that the Order entered on this Motion does not waive, limit, or adjudicate Defendant's claims to division of marital property under MCL 552.401, which are reserved for adjudication at the divorce trial or settlement; and
31. Granting such other and further relief as this Court deems just and equitable.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Defendant Pro Se

1690 Brookfield Drive

Ann Arbor, Michigan 48103

(254) 340-7910

conrad@rockenhaus.net

Dated: May 7, 2026

VERIFICATION

I, Conrad Alan Rockenhaus, declare under penalty of perjury that I have read the foregoing Motion for Return of Personal Property, Restoration of Electronic Account Access, Inventory and Accounting, and

Court-Supervised Retrieval Mechanism, that the factual statements contained therein are true and correct to the best of my knowledge, information, and belief, and that the matters stated upon information and belief are believed to be true.

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: May 7, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on May 7, 2026, I served a true and correct copy of the foregoing Defendant's Motion for Return of Personal Property, Restoration of Electronic Account Access, Inventory and Accounting, and Court-Supervised Retrieval Mechanism upon Plaintiff Adrienne Marjorie Rockenhaus, by service upon her counsel of record in this matter, by First Class U.S. Mail, postage prepaid, and by electronic mail, addressed as follows:

Lisa Baker, Esq.

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Plymouth, MI 48170

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/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: May 7, 2026